

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC
HOLDINGS, LLC,
Plaintiff,

Case No.: 2023-CC-_____

vs.

GREGORY DOUGLAS BURKETT and ANY
UNKNOWN PARTY(s) IN POSSESSION.
Defendants.

COMPLAINT SEEKING POSSESSION OF RESIDENTIAL PREMISES AND DAMAGES

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendant(s), GREGORY DOUGLAS BURKETT and ANY UNKNOWN PARTY(s) IN POSSESSION, in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of real property in Manatee County, Florida, as authorized by Section 723.061(1)(C)2 of Florida Statutes for violation of park rules, not for failure to pay rent.

2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida.

3. Plaintiff owns, in fee simple, the real property located at 900 9th Avenue East, Lot 214, Palmetto, Manatee County, Florida 34221, known as COLONIAL MOBILE MANOR.

4. Defendant, GREGORY DOUGLAS BURKETT, a natural person, entered into a rental agreement to reside at 900 9th Ave East, Lot #214, Palmetto, Manatee County, Florida, 34221, owned by COLONIAL MANOR MHC HOLDINGS, LLC, known as COLONIAL MOBILE MANOR. A copy of the rental agreement is attached to this Complaint as Plaintiff's Exhibit A.

5. Defendant, GREGORY DOUGLAS BURKETT, is the record owner of the mobile home located on the real property on 900 9th Ave East, Lot #214, Palmetto, Florida, 34221.

6. Defendant(s), ANY UNKNOWN PARTY(s) IN POSSESSION, may reside on the real property at 900 9th Ave East, Lot #214, Palmetto, FL 34221, Manatee County, but if so, does without the consent of the Plaintiff.

7. The Defendant, GREGORY DOUGLAS BURKETT, violated the Rules and Regulations of COLONIAL MOBILE MANOR, more specifically, Rule 2 pertaining to engaging in conduct which affects the quiet enjoyment of the park and its residents. A copy of the Rules and Regulations of the Plaintiff are attached to this Complaint as Plaintiff's Exhibit B.

8. On February 17, 2023, the Defendants, GREGORY DOUGLAS BURKETT and ANY UNKNOWN PARTY(s) IN POSSESSION, were notified by certified mail, return receipt requested, and by posting that they were in violation of Rule 2 pertaining to engaging in conduct which affects the quiet enjoyment of the park and its residents at Lot #214 of COLONIAL MOBILE MANOR and pursuant to that notice their right to reside on the premises was terminated, granting them 30 days to vacate the premises of 900 9th Ave East, Lot #214, Palmetto, FL 34221. A copy of the Notice of Termination of Tenancy and certified proof of mailing are attached to this Complaint as Plaintiff's Exhibit C.

9. On February 17, Exhibit C was also posted on 900 9th Ave East, Lot #214, Palmetto, FL 34221 pursuant to Fla. Stat. §723.061.

10. As of the date of the filing of this Complaint, the Defendant, GREGORY DOUGLAS BURKETT, is currently incarcerated in the Manatee County Jail for Possession of a Firearm by a Convicted Felon and Murder in the Second Degree with a Firearm (Life).

11. Plaintiff, COLONIAL MOBILE MANOR, has incurred costs and damages caused by Defendants, GREGORY DOUGLAS BURKETT and ANY UNKNOWN PARTY(s) IN

POSSESSION in an amount less than \$30,000.00.

12. Plaintiff has not accepted rent since the date that the Defendant was notified that his right to reside on the premises has been terminated.

13. ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in Lot #214 of COLONIAL MOBILE MANOR but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

14. Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of costs and attorney fees arising out of the action.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises against Defendants, GREGORY DOUGLAS BURKETT and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

15. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.

16. Plaintiff re-alleges the facts contained within paragraphs 1 through 14 as though fully set forth herein.

17. Plaintiff, as landlord, leased to Defendant, GREGORY DOUGLAS BURKETT. Lot 214, 900 9th Ave East, Palmetto, FL 34221 of the above stated mobile home park at a monthly rental fee of \$626.50.

18. Defendant owes the Plaintiff the total sum of less than \$30,000.00 plus interest, costs of maintenance to the lot, court costs and a reasonable attorney fee arising out of the prosecution of this cause of action.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, GREGORY DOUGLAS BURKETT, for damages, costs, and attorney fees.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN UPON ORDER OF POSSESSION

19. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

20. The Plaintiff re-alleges the facts contained within paragraphs 1 through 18 (seeking possession and damages) as though fully set forth herein.

21. Defendant, GREGORY DOUGLAS BURKETT, is the registered owner of a 1978 *MUAVE UNKNOWN MAKE UNKNOWN MODEL double wide mobile home, VIN# 5266A; Title #0015425527 and VIN# 5266B; Title #0015425528*, located on Lot #214 of the property leased by the Plaintiff to the Defendant, GREGORY DOUGLAS BURKETT.

22. Upon the Plaintiff being determined to be entitled to judgment for possession of the premises in this Complaint, Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for any unpaid rent, utility bills, late fees, and damage to the real property caused by the Defendant, plus court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

23. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

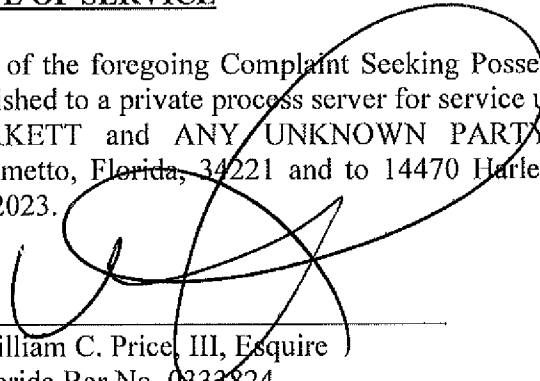
24. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendant, GREGORY DOUGLAS BURKETT, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days after the rendition of judgment for possession and damages in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing

the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Possession of Residential Premises and Damages has been furnished to a private process server for service upon the Defendant(s), GREGORY DOUGLASS BURKETT and ANY UNKNOWN PARTY(s) IN POSSESSION at 900 9th Ave E, Lot #214, Palmetto, Florida, 34221 and to 14470 Harlee Road, Palmetto, Florida 34221 on this 4th day of April, 2023.



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